

9. 9:00 AM CASE NUMBER: C25-01567
CASE NAME: ALEXIS DEAN VS. DOES 1 TO 20
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: MOUNT DIABLO UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

Before the Court is the Defendant's Demurrer, filed April 20, 2026, to the Plaintiffs' First Amended Complaint. Hearing was set for September 11, 2026. Plaintiffs' Opposition pleadings were due August 28, 2026, due 9 (nine) court days in advance of hearing. (CCP 1005) Defendants filed their Opposition on September 1, 2026, seven court days in advance of the hearing.

Plaintiffs offer no explanation for their tardy submission. Defendants filed a timely Reply Memorandum objecting to the tardy submission, citing *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal. App. 5th 252, 262 and Cal. Rules of Court 3.1300(d). Reply, filed September 3, 2026, at 2. Defendants note that this is the second time the Plaintiffs have missed a deadline to file an opposition to a demurrer.

The Court has broad discretion to accept or reject papers filed after the applicable deadline absent a prior order finding good cause for the late submission. (See Cal. Rules of Court, Rule 3.1300(d); see also *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal. App. 5th 252, 262-263; *Samaniego v. Empire Today LLC* (2012) 205 Cal. App. 4th 1138, 1146; see also *Shadle v. City of Corona* (1979) 96 Cal.App.3d 173, 178-179 ["The requirement that opposing papers be filed a reasonable time in advance of the hearing helps to ensure that the court and the parties will be familiar with the facts and the issues so that meaningful argument can take place and an informed decision rendered at the earliest convenient time."].)

Here no prior order finding good cause for the late submission has been made. Plaintiffs made no attempt to explain their tardiness in their papers. The court will not accept repeated disregard of the court rules.

The demurer is **sustained**, with leave to amend. The Plaintiffs shall file their amended Complaint within 15 days of service of notice of entry of this order.

10. 9:00 AM CASE NUMBER: C25-01680
CASE NAME: ERROL USHER VS. ERIC BAEBLER
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: ENVENT CORPORATION
TENTATIVE RULING:

The Court continues the hearing on its own motion to October 2, 2026, at 9:00 a.m.